

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DAWUD KNUCKLES,

Index No. _____
Purchased 1-1-24

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

THE CITY OF NEW YORK and
POLICE OFFICER MATTHEW SANCHEZ
(shield # 12030),

SUMMONS

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
January 1, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X

DAWUD KNUCKLES,

Plaintiff,

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK and
POLICE OFFICER MATTHEW SANCHEZ (shield # 12030)

Defendants.

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Plaintiff DAWUD KNUCKLES, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DAWUD KNUCKLES was a resident of Westchester County, State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER MATTHEW SANCHEZ (shield # 12030)("P.O. SANCHEZ"), was and is a police officer employed by Defendants.

BACKGROUND

5. On December 17, 2022, at approximately 9:00 a.m., in the vicinity of 150 West 225th Street in Bronx County, without just cause or provocation, Defendants, including P.O. SANCHEZ, approached Plaintiff, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Contempt in the 2nd Degree. P.O. Sanchez handcuffed Plaintiff in front of Plaintiff's five year-old daughter. Upon searching Plaintiff, P.O. Sanchez removed a piece of jewelry from Plaintiff that Plaintiff had purchased, while traveling in Egypt, for his daughter. Plaintiff had planned to give his daughter this piece of jewelry on the morning of December 17, 2022.
6. Next, Plaintiff was taken to a police precinct in Bronx County.
7. Plaintiff was forced to remain in a precinct cell until Plaintiff was transported to Bronx Central Booking.
8. On December 18, 2022, Plaintiff was released from Central Booking without appearing before a Judge and without being prosecuted for any crime or offense.

PROCEDURAL POSTURE

9. On January 30, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

11. This action has been commenced within one year and ninety days after the cause of action accrued.
12. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

13. Paragraphs 1-12 are incorporated by reference as fully set forth herein.
14. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-8, and Plaintiff did not consent to that arrest or confinement.
15. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right. Defendant's lacked probable cause to arrest Plaintiff.
16. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: ASSAULT

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. P.O. SANCHEZ, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff and violently handcuffing Plaintiff.
19. As a result of being assaulted by P.O. SANCHEZ, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: BATTERY

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
21. When P.O. SANCHEZ violently handcuffed Plaintiff, P.O. SANCHEZ subjected Plaintiff to a harmful or offensive bodily contact. P.O. SANCHEZ intended to make that contact without Plaintiff's consent.
22. As a result of being battered by P.O. SANCHEZ, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: NEGLIGENCE

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.
24. P.O. SANCHEZ, during the arrest process, removed a piece of jewelry from Plaintiff's person that Plaintiff had purchased for his daughter. P.O. SANCHEZ negligently failed to voucher this piece of jewelry. Furthermore, upon information and belief, P.O. Sanchez claims that he "lost" this piece of jewelry and "cannot find" this piece of jewelry.
25. P.O. SANCEHZ was negligent in failing to safeguard Plaintiff's jewelry and in "losing" Plaintiff's jewelry.
26. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including emotional distress and sadness.

FIFTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.
28. Defendant CITY, through its agents, servants and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating and training of the NYPD officers involved in this matter, including P.O. SANCHEZ.

29. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
30. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
31. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to illegally search, seize and falsely arrest Plaintiff.
32. The Defendants had the responsibility for supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. SANCHEZ.
33. Defendant CITY and POLICE were negligent in supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. SANCHEZ.
34. As a result of the negligence of defendants CITY and POLICE, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT HIRING

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.
36. The Defendants had the responsibility for hiring the police officers that arrested Plaintiff, including P.O. SANCHEZ.
37. The Defendants were negligent in hiring the police officers that arrested Plaintiff, including P.O. SANCHEZ.

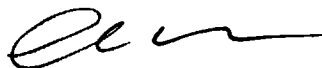
38. As a result of the negligence of the Defendants, Plaintiff sustained multiple physical and emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
January 1, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DAWUD KNUCKLES,

Plaintiff

-against-

THE CITY OF NEW YORK and POLICE OFFICER
MATTHEW SANCHEZ (shield # 12030),

Defendants

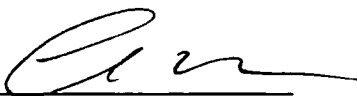
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ATTORNEY VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
January 1, 2024



ELLIOT S. KAY